

1 M. Akenhurst A Modern Introduction to International Law 6th ed. Harper Collins, 1987

Is International Law Really Law?

International law (otherwise known as public international law or the law of nations) is the system of law which governs relations between states. At one time states were the only bodies which had rights and duties under international law, but nowadays international organizations, companies and individuals also sometimes have rights and duties under international law; however, it is still true to say that international law is *primarily* concerned with states.

English textbooks on international law usually discuss not only international law, but also certain rules of English law, such as the British Nationality Act, which are relevant to international relations; and this is a practice which the present book will also follow.

Popular Scepticism about International Law

The initial reaction of law students and laymen alike, when they are first told about international law, is usually highly sceptical. They believe that states have little respect for international law, and have no incentive to obey it in the absence of a supranational system of sanctions capable of being enforced against the law-breaker. In short, the popular belief is that international law is not really law.

The question whether international law is really law cannot be dismissed as a purely verbal question. If cabinet ministers and diplomats shared the popular scepticism about international law, then international law would be broken far more often than it is. Even if they regarded international law as a form of morality rather than law, respect for it would still be weakened; it is significant that those who regard international law as a form of morality usually speak of it as '*mere* morality'. Although experienced diplomats do not often share the popular scepticism about international law, there is a danger that the popular attitude

may affect inexperienced officials and pressure groups within a state, and that the state may, as a result, be pushed into breaking international law.

In fact, however, states do accept that international law is law; and, what is more, they usually obey it. It is true that international law is sometimes broken with impunity; but the same could be said of any legal system. For instance, only 22 per cent of the robberies committed in England and Wales in 1984 were solved by the police. In some other countries the position is even worse. If war is taken as the supreme example of a breakdown of law and order, it is significant that in many states civil wars and rebellions have been far more frequent (and often more devastating) than international wars.

International law is not broken more often than any other system of law. But people imagine that it is constantly broken. Why has this impression arisen? There are, I think, two explanations.

In the first place, it is only the violations of the law that get into the newspapers. When people are robbed or murdered, or when states attack one another, it is news; if the law is obeyed, it is not reported, but taken for granted. A visitor from another planet, picking up one of our newspapers and finding it full of accounts of robberies and murders, might be forgiven for thinking that life was not safe; we, who live on this planet, can tell from our own experience of everyday life that what is reported in the newspapers is the exception, not the rule. But most people have no similar experience of international relations to set against what they read in the newspapers, and so they think that the reported breaches of international law are typical instead of being exceptional.

Secondly, people tend to imagine that the mere existence of an international dispute proves that at least one state has broken the law. But international disputes are not necessarily caused by breaches of international law, just as disputes between individuals are not necessarily caused by breaches of national law. International law does not provide an answer to all international disputes, just as English law does not provide an answer to all quarrels between English people. It is worth listing some of the other factors which can cause international disputes.

- (1) There may be a genuine uncertainty about the facts. For instance, before one can decide whether United States' participation in the fighting in Vietnam between 1965 and 1973 was legal or illegal, one has to decide whether the National Liberation Front (Vietcong) in South Vietnam represented spontaneous internal revolt or whether it

represented subversion from North Vietnam. In the former case, US intervention was probably unlawful; in the latter case, it was probably lawful (see below, pp. 284-8). But opinions and evidence about the nature of the NLF differ, and one has to know the facts before one can apply the law.

- (2) There may be genuine uncertainty about the law. For instance, some states think it is lawful to nationalize foreign property without compensation; others disagree. When a dispute arises between a state in the first group and a state in the second group, each will be convinced that it is in the right, and it is difficult to predict how an international court would decide the case (see below, pp. 92-8).
- (3) An international dispute may be caused by a demand for a change in the law, just as strikes and other types of industrial dispute are often caused by a demand for alterations in the workers' contracts of employment. One cannot solve such a dispute by telling states what the existing law is, any more than one can persuade strikers to go back to work by telling them that Professor X says in his book on industrial law that wages are fixed by the contract of employment and that Professor Y says in his book on the law of contract that contracts can be altered only by mutual agreement.
- (4) An international dispute may be caused by an unfriendly but legal act. The duties which international law places on states are often limited, and it may therefore be possible to injure another state severely without breaking the law. For instance, apart from special treaty provisions, international law does not prevent a state increasing its tariffs on goods coming from another state, even though the result may be to cause severe unemployment in the other state.
- (5) An international dispute may arise from a violation of a body of rules which does not form part of international law. Just as societies of individuals have rules of morality, good manners and so on, which are not part of the law, so the international society of states has rules of conduct which do not form part of international law. Some of these rules may be briefly mentioned.
 - (a) There are rules of courtesy (for example, saluting the flags of foreign warships at sea). There is an obvious similarity between such rules and the rules of courtesy which individuals observe in a national society (for example, taking your hat off in church).
 - (b) There are certain ideals which are regarded as desirable but not always practicable, such as human rights, and

self-determination of peoples. It is precisely because they are not always practicable that they have often not been treated as rules of law; for law demands 100 per cent compliance.¹ They bear some resemblance to moral ideals like truthfulness, which national law does not seek to enforce, because violations are too common to make enforcement practicable.

- (c) Under the doctrine of spheres of influence, a major power adopts the policy of defending smaller powers within its sphere of influence against outside attacks (to this extent the doctrine serves to strengthen international law); the major power also claims the right to intervene in the affairs of the smaller powers within its sphere of influence (and here the doctrine runs counter to international law). The world received a grim reminder of the continuing existence of this doctrine at the time of the Soviet invasion of Czechoslovakia in August 1968, which the Soviet Union publicly justified by reference to the concept of spheres of influence. The doctrine mercifully has no exact parallel in national societies, but something like it may be seen in those unspoken patterns of segregation which exist in societies where there are deep racial or religious differences; a Catholic who buys a house in a Protestant area of Belfast will soon be made to feel a trespasser, even though he may have an impeccable legal title to the property.

There is really only one way of distinguishing international law from non-legal rules applicable to international relations, and that is to ask: 'Do states regard this particular rule as a rule of international law, or not?' The question is important and needs to be asked, because two significant consequences depend on the answer.

In the first place, when a non-legal rule is turned into a legal rule, it acquires a vigour which it never had before. An immoral or discourteous act is regarded as worse if it is illegal as well. For instance, Argentina reacted sharply to the Israeli abduction of the Nazi war criminal Eichmann from Argentina in 1960, not because it had any interest in protecting Eichmann from punishment, but because the abduction constituted an infringement of Argentina's rights under international law; if Argentina had merely regarded the abduction as discourteous or immoral, its reaction would

¹ Such ideals are gradually becoming rules of law; see below, pp. 76-81 and 290-7. difference between contentious and advisory proceedings; see below, p. 249). In the end

probably not have been as sharp. Similarly, a sphere of influence is strengthened if it is placed on a legal basis. Thus, the fact that the USA has promised *by treaty* to defend the European members of NATO against Soviet attack means that the USA is more likely to honour its promise than it would have been in the absence of a *legally* binding promise; as a result NATO's effectiveness as a deterrent is greatly increased.

Second, when a non-legal rule is turned into a legal rule, arguments about the scope of that rule take on a new character. Lawyers are trained not only to know (or to know where to find) the law when the law is clear, but also how to argue a case when the law is not clear — how to interpret or distinguish previous authorities, how to make use of analogies, how to deduce general principles from more detailed rules and vice versa. Legal argument is a distinct form of argument, just as literary criticism is a distinct form of argument. The applicability of legal argument to particular rules is both a consequence and a proof of the legal character of those rules; to argue about rules of morality or of courtesy in the same way that one argues about rules of law would clearly be grotesque:

What predominate in the arguments, often technical, which states address to each other over disputed matters of international law, are references to precedents, treaties and juristic writings; often no mention is made of moral right or wrong . . . Hence the claim that the Peking Government has or has not a right under international law to expel the Nationalist forces from Formosa, is very different from the question whether this is fair, just, or a morally good or bad thing to do, and is backed by characteristically different arguments.

(H. L. A. Hart, *The Concept of Law*, 1961, p. 223)

The Problem of Sanctions

In a modern state we are accustomed to find a legislature which enacts the law; a judiciary which tries violations of the law; and an executive body which, among other things, enforces the decisions of the legislature and the judiciary. In international law, these features are almost wholly lacking. To a large extent, states create international law for themselves and need not accept a new rule unless they agree to it; they need not appear before an international tribunal unless they agree to do so; and there is no centralized executive body with the task of enforcing the law.

The absence of a legislature in international law led some nineteenth-century philosophers to deny that international law was law, but this defect is not regarded as crucial nowadays. What

contemporary sceptics seize on is the absence of sanctions — that is to say, the absence of obligatory judicial settlement, and the absence of a centralized executive authority to enforce judgments.

If one state commits an illegal act against another state, and refuses to make reparation or to appear before an international tribunal, there is (or was until recently) only one sanction in the hands of the injured state: self-help. Self-help exists as a sanction in all legal systems. In primitive law (for example, English law before the Norman Conquest) most sanctions involved the use of self-help in one form or another. Even in modern English law an individual may defend himself against assaults, retake property which has been stolen from him, evict trespassers from his land and terminate a contract if the other party has broken a major term of the contract. But in modern societies self-help has become the exception rather than the rule, whereas in international law it has remained the rule.

At one time states could even go to war to enforce their legal rights. However, this is no longer lawful, with certain exceptions such as self-defence against armed attack. The remaining forms of self-help are retorsion and reprisals.

Retorsion is a lawful act which is designed to injure the wrong doing state — for example, cutting off economic aid (this is lawful because there is no legal obligation to give economic aid, apart from special treaty provisions).

Reprisals are acts which would normally be illegal but which are rendered legal by a prior illegal act committed by the other state. For instance, if state A expropriates property belonging to state B's citizens without compensation, state B can retaliate by doing the same to property of state A's citizens. Reprisals must be proportionate to the original wrong; for instance, state B could not expropriate property worth several times the value of the property which its citizens had lost; still less would it be entitled to kill or imprison state A's citizens.

One disadvantage of retorsion and reprisals is that the state imposing them may injure itself as much as the state against which they are directed; this is particularly true when one state cuts off trade with another state. But other types of sanctions share the same defect; for instance, in English law, a business man who sues a customer to recover a debt may face a bill from his lawyers which is greater than the value of the original debt. A more serious disadvantage of self-help is that it works effectively only if the injured state is in some way more powerful or more determined than the wrongdoing state.

Not surprisingly, therefore, there has been a recent tendency for

sanctions to be imposed by large groups of states, working through international organizations such as the United Nations. But the United Nations Security Council can impose sanctions only in limited circumstances, and is often paralysed by the power of veto possessed by each of its five permanent members. The United Nations General Assembly is not subject to the veto, but its resolutions are usually not legally binding (although they are an institutionalized form of public opinion and can exercise great political pressure). Both the Security Council and the General Assembly, being political and not judicial bodies, base their decisions on political considerations and sometimes pay little attention to the legal rights and wrongs of a dispute.

International organizations with more specialized functions may exercise a more effective control over their members, especially if they provide essential services, like the International Monetary Fund. A state which was excluded from membership of the Fund would be unable to borrow gold and foreign currency from the Fund to meet a balance of payments crisis. And regional organizations may exercise an even stricter discipline over their members; for instance, the Court of Justice of the European Communities has compulsory jurisdiction over member-states which are accused of breaking the rules of the EEC.

However, it must be confessed that sanctions work less effectively in international law than in national law. States are few in number and unequal in strength, and there are always one or two states which are so strong that other states are usually too weak or too timid or too disunited to impose sanctions against them. But this does not mean that international law as a whole works less effectively than national law — only that it works in a different way. The importance of sanctions must not be exaggerated. They are not the main reason why the law is obeyed in any legal system. People do not refrain from committing murder because they are afraid of being punished, but because they have been brought up to regard murder as unthinkable; habit, conscience, morality, affection and tolerance play a far more important part than sanctions. Sanctions are effective only if the law-breaker is in a small minority; if he is not, sanctions are powerless to secure compliance with the law, as is shown by widespread violation of speed limits on English roads. It is unsound to study any legal system in terms of sanctions. It is better to study law as a body of rules which are usually obeyed, not to concentrate exclusively on what happens when the rules are broken. We must not confuse the pathology of law with law itself.

Reasons Why States Obey International Law

States obey international law far more often than most people suppose. Fear of sanctions has very little to do with this obedience. There are other factors inherent in the very nature of international law and of international society which induce states to obey international law. These factors more than compensate for the weakness of sanctions, but few people are aware of them, because they have no counterpart in national systems of law. Not all of these factors may operate at the same time, but compliance with international law will usually be secured even if only one of them operates in a particular case.

(1) *The absence of a legislature* is paradoxically a source of strength for international law. All legal systems correspond to some extent to the prevailing climate of opinion in the society in which they operate, but in national legal systems the concentration of legislative power in the hands of a small number of individuals may result in the enactment of rules which most people do not want and are reluctant to obey. In international law the absence of a legislature means that states very largely create law for themselves, and it is unlikely that they will create law which is not in their interests or which they will be tempted to break.

It is not difficult to see why it is in the interests of states to agree to rules of international law. States are naturally interdependent in many ways (for example, international trade), and international law facilitates international co-operation; states have a common interest in preventing pollution of the sea, for instance, but prevention of pollution requires detailed rules about such things as the discharge of oil from ships, and a treaty or some other legal instrument is the obvious way of laying down the necessary rules. Similarly, when a particular problem is constantly arising (for example, do aircraft from one state have a right to fly through the air space above another state?), it is in everyone's interests to have an agreed rule to deal with all such cases, instead of leaving every individual case to be decided by a trial of strength between the particular states concerned. Even when the relevant rule of international law is imprecise, it still performs a useful function; it may not eliminate the area of disagreement between states, but at least it reduces that area, and thus makes it easier for disputes to be settled without friction.

The fact that international law largely reflects the interests of states does not justify the conclusion that states would act in the same way even if there were no law; still less does it justify the cynical view that states obey international law only when it is in their interests to do so. In the first place, as we shall see, the mere

fact that a rule is a rule of international law provides states with reasons for obeying it even when there appear to be short-term gains to be derived from breaking it. Second, as I have already tried to show (above, pp. 4-5), a rule acquires a life of its own when it becomes a rule of international law. Out of habit, states obey the rule even when it goes against their interests, and claim their legal rights even when their interests are not involved. And legal arguments as well as political arguments are used in disputes about applications of the rule.

(2) *International law is largely based on custom.* By obeying a customary rule, states strengthen the rule. By breaking it, they weaken it and, so to speak, cast a vote in favour of its repeal. Customary law has a built-in mechanism of change. Thus, a state which breaks a rule of customary law may find that it has created a precedent which can be used against it, not only by the original victim, but also by third states, when the wrongdoing state wants to claim the benefit of that rule in the future. Realization of this possibility often deters states from breaking international law.

However, the application of this factor is subject to three disadvantages:

- (a) When states break rules of international law, they often attempt to justify their conduct by suggesting a narrow exception to the original rule, in the hope that a narrow exception will not constitute a dangerous precedent. But sometimes this hope is not fulfilled. For instance, when India invaded Goa in 1961, it argued that the liberation of territories seized in the past by colonial powers constituted an exception to the general prohibition against the use of force. A year later China invaded some areas held by India in the Himalayas, arguing that these areas had originally been seized from China by a colonial power (Britain) and that China was therefore entitled to use force to recover them, just as India had done in Goa.
- (b) A state may deliberately try to undermine a rule if that rule generally works against the state's interest. However, in some cases it may be difficult to undermine a particular rule without undermining the law as a whole, and a realization of this may act as a deterrent on the state concerned.
- (c) Many diplomats may not be sophisticated enough to weigh the long-term disadvantages of violating a rule against the short-term gains of violation. At times of great tension, it may be difficult to look beyond the immediate crisis. The cynical view is that states will always violate international law when their vital (short-term) interests are in danger. This

view is only partly true, because violations, when they do occur, are more often unconscious than conscious. It often happens that there is no absolutely right answer to a legal problem; instead, there are answers of varying degrees of legal soundness and unsoundness. In times of crisis, when a state's vital interests are in danger, the state's legal advisers may lose their usual calmness and impartiality and be content with a lower degree of legal soundness than they would normally have required. The danger is that what seems reasonably sound to one side will not seem reasonably sound to the other side, particularly if the other side is equally inflamed. Consequently each side may genuinely believe that it is obeying the law and that the other side is the law-breaker.

(3) *States are few in number and are composed of territory.* The fact that states are few in number means that every state comes into frequent contact with other states. The fact that states are composed of territory means that a state cannot choose its neighbours; it is forced to live with the states near it. Occasionally a state is able to live in virtual isolation from the rest of the world, as Japan did for over two centuries before 1854. But normally a state is driven by economic and other needs to seek benefits from other states. If it tries to take those benefits by force, it will unite other states against it in a defensive alliance. If it tries to obtain benefits by peaceful means, it will have to give something in return. And, in order to induce other states to 'do business' with it, it will have to acquire the reputation of being trustworthy and law-abiding. This applies particularly to its relations with its neighbours, with whom it is likely to have the most frequent dealings. In national societies, an individual who acquires a reputation for lawlessness in his home town can move to another town where he is unknown and find anonymity in a large crowd. But states cannot move from one continent to another; even if they could, they would find that their reputation was known all over the world, simply because the international society of states is so much smaller numerically than a national society of individuals.

It is frequently supposed that only small states need to worry about acquiring a reputation for being law-abiding. But such a reputation is an indispensable asset for the foreign policy of even the strongest states. For instance, under the North Atlantic Treaty, which is a cardinal feature of United States foreign policy, the USA undertakes to defend its European allies against Soviet attack. In order to make the alliance an effective deterrent in Soviet eyes, and in order to encourage the European allies to

remain in the alliance, the USA has to convince both the Soviet Union and the European members of NATO that it is a state which keeps its promises.

Further Reading

- Roger Fisher, *Points of Choice*, 1978.
 L. Henkin, 'International law and the behaviour of nations', *Recueil des cours de l'Académie de droit international de La Haye*, vol. 114, 1965, pp. 171-276.
 L. Henkin, *How Nations Behave*, 2nd ed., 1979.
 A. James, *The Bases of International Order*, 1973, pp. 60-84.
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 J. G. Merrills, *Anatomy of International Law*, 2nd ed., 1981.
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Sources of International Law

Article 38(1) of the Statute of the International Court of Justice provides:

The Court, whose function is to decide in accordance with international law such disputes as are submitted to it, shall apply:

- (a) international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;
- (b) international custom, as evidence of a general practice accepted as law;
- (c) the general principles of law recognized by civilized nations;
- (d) . . . judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.

This provision is usually accepted as constituting a list of the sources of international law. Some writers have criticized it on the grounds that it does not list all the sources of international law, or that it includes things which are not genuine sources, but none of the alternative lists which have been suggested has won general approval. It is therefore proposed to examine the sources listed in the Court's Statute before considering other possible sources of international law.

Treaties

The Statute of the International Court of Justice speaks of 'international conventions, whether general or particular, establishing rules expressly recognized by the contesting states'. The word 'convention' means a treaty,¹ and that is the only meaning which

¹ Other words used as a synonym for treaties, or for particular types of treaty, are agreement, pact, protocol, charter, statute, act, covenant, declaration, engagement, arrangement, accord, regulations and provisions. Some of these words have alternative meanings (that is, they can also mean something other than treaties), which makes the problem of terminology even more confusing.

the word possesses in international law, and in international relations generally. This is a point worth emphasizing, because students have been known to confuse conventions with conferences, or to confuse conventions in international law with conventions of the constitution in English law.

Treaties are the maids-of-all-work in international law. Very often they resemble contracts in national systems of law, but they can also perform functions which in national systems would be carried out by Acts of Parliament, by conveyances, or by the memorandum of association of a company. In English law, Acts of Parliament are regarded as sources of law, but contracts are not; contracts are merely legal transactions. (Contracts create rights and duties only for the contracting parties, who are very few in number, and it is generally agreed that a 'source of law' means a source of rules which apply to a very large number of people.) Some writers have tried to argue that treaties should be regarded as sources of international law only if they resemble Acts of Parliament in content, that is, if they impose the same obligations on all the parties to the treaty and seek to regulate the parties' behaviour over a long period of time; such treaties are called law-making treaties. According to this theory, 'contract-treaties', that is, treaties which resemble contracts (for instance, a treaty whereby one state agrees to lend a certain sum of money to another state) are not sources of law, but merely legal transactions. However, the analogy between Acts of Parliament and law-making treaties is misleading for two reasons.

- (1) In national systems of law anyone can make a contract, but Acts of Parliament are passed by a small group of people. In international law, any state can enter into a treaty, including a law-making treaty.
- (2) In national systems of law contracts create rights and duties only for the contracting parties, who are very few in number, whereas Acts of Parliament apply to a very large number of people. In international law all treaties, including law-making treaties, apply only to states which agree to them. Normally the parties to a law-making treaty are more numerous than the parties to a 'contract-treaty', but there is no reason why this should always be so.

The only distinction between a law-making treaty and a 'contract-treaty' is one of content. As a result, many treaties constitute borderline cases, which are hard to classify. A single treaty may contain some provisions which are 'contractual', and

others which are 'law-making'. The distinction between law-making treaties and 'contract-treaties' is not entirely useless; for instance, a 'contract-treaty' is more likely to be terminated by the outbreak of war between the parties than a law-making treaty. But it is too slight and imprecise to justify regarding law-making treaties as the only treaties which are a source of international law. The better view is to regard all treaties as a source of law.

Treaties are of growing importance in international law. The official published version of treaties entered into by the United Kingdom in 1892 (the UK Treaty Series) filled 190 pages; the treaties entered into by the United Kingdom in 1960 filled 2,500 pages in the same series. As collectivism has replaced *laissez-faire*, a large number of questions have become subject to governmental regulation – and to intergovernmental regulation when they transcend national boundaries. Modern technology, communications and trade have made states more interdependent than ever before, and more willing to accept rules on a vast range of problems of common concern – extradition of criminals, safety regulations for ships and aircraft, economic aid, copyright, standardization of road signs, and so on. The rules in question are usually laid down in treaties, with the result that international law has expanded beyond all recognition in the last 130 years (although it must be pointed out that most of the rules are too specialized to be dealt with in ordinary textbooks on international law). Treaties are the major instrument of co-operation in international relations, and co-operation often involves a change in the relative positions of the states involved (for example, rich countries give money to poor countries). Treaties, therefore, are often an instrument of change – a point which is forgotten by those who regard international law as an essentially conservative force.

To some extent treaties have begun to replace customary law. Where there is agreement about rules of customary law, they are codified by treaty; where there is disagreement or uncertainty, states tend to settle disputes by *ad hoc* compromises – which also take the form of treaties.

Custom

The second source of international law listed in the Statute of the International Court of Justice is 'international custom, as evidence of a general practice accepted as law'.

Where to Look for Evidence of Customary Law

The main evidence of customary law is to be found in the actual

practice of states, and a rough idea of a state's practice can be gathered from published material – from newspaper reports of actions taken by states, and from statements made by government spokesmen to Parliament, to the press, at international conferences and at meetings of international organizations; and also from a state's laws and judicial decisions, because the legislature and the judiciary form part of a state just as much as the executive does. At times the Foreign Ministry of a state may publish extracts from its archives; for instance, when a state goes to war or gets involved in a particular bitter dispute, it may publish documents to justify itself in the eyes of the world. But the vast majority of the material which would throw light on a state's practice concerning questions of international law – correspondence with other states, and the advice which each state receives from its own legal advisers – is normally not published; or, to be more precise, it is only recently that efforts have been made to publish digests of the practice followed by different states.

Evidence of customary law may sometimes also be found in the writings of international lawyers, and in judgments of national and international tribunals, which are mentioned as subsidiary means for the determination of rules of law in Article 38(1)(d) of the Statute of the International Court of Justice (see below, pp. 36–7, and cf. also *The Paquete Habana* (1900), 175 U.S. 677, 700–1).

Similarly, treaties can be evidence of customary law; but great care must be taken when inferring rules of customary law from treaties. For instance, treaties dealing with a particular subject-matter may habitually contain a certain provision; thus, extradition treaties almost always provide that political offenders shall not be extradited. It has sometimes been argued that a standard provision of this type has become so habitual that it should be regarded as a rule of customary law, to be inferred even when a treaty is silent on that particular point. On the other hand, why would states bother to insert such standard provisions in their treaties if the rule existed already as a rule of customary law? The problem is a difficult one, and one needs to know more about the intentions of the parties to the treaties in question before one is safe in invoking a standard treaty provision as evidence of customary law.

However, there is another way in which a treaty can definitely constitute evidence of customary law. If the treaty claims to be declaratory of customary law, or is intended to codify customary law, it can be quoted as evidence of customary law even against a state which is not a party to the treaty.² Such a state is not

bound by the treaty, but by customary law; therefore, if it can produce other evidence to show that the treaty misrepresents customary law, it can disregard the rule stated in the treaty. This possibility is not open to states which are parties to the treaty, since they are bound by the treaty in their relations with other parties to the treaty, regardless of whether the treaty accurately codifies customary law or not.

Finally, there is the possibility that customary law may change so as to conform with an earlier treaty. For instance, the Declaration of Paris 1856 altered certain rules about the conduct of war at sea; as a treaty, it applied only between the parties to it: Austria, France, Prussia, Russia, Sardinia, Turkey and the United Kingdom. Subsequently, however, the rules contained in the Declaration were accepted by a large number of other states as rules of customary law.

Similar problems arise with resolutions passed at meetings of international organizations, particularly resolutions of the United Nations General Assembly (cf. below, pp. 38–9). Most resolutions have nothing to do with international law; an obvious example would be a resolution recommending research into the causes of cancer. Even when resolutions do have something to do with international law, they may simply be recommending changes, and the text of such a resolution clearly cannot be interpreted as representing the existing law; a resolution declaring that X *ought* to be the law is obviously not evidence that X *is* the law. If a resolution declares that X *is* the law, it can be used as evidence of customary law. But the value of such a resolution varies in proportion to the number of states voting for it; if many states vote against it, its value as evidence of customary law is correspondingly reduced.

A resolution passed at a meeting of an international organization is never *conclusive* evidence of customary law. It has to be examined in conjunction with all the other available evidence of customary law, and it may thus be possible to prove that the resolution is not a correct statement of customary law.

For further discussion of resolutions of international organizations as evidence of customary law, see Akehurst, 'Custom as a source of international law', *British Year Book of International Law*, vol. 47, 1974–5, pp. 1, 5–7.

² This is so even if the treaty has not received enough ratifications to come into force (for an example, see below, p. 279, and on ratification and entry into force of treaties generally, see below, p. 125–9). It may be asked why states should be unwilling to ratify a treaty if it merely restates customary law. Explanations include inertia and lack of parliamentary time (if ratification requires the participation of the legislature, as it does in many countries). Moreover, only part of the treaty may codify customary law, and a state may refuse to ratify because it objects to other parts.

The Problem of Repetition

It has sometimes been suggested that a single precedent is not enough to establish a customary rule, and that there must be a degree of repetition over a period of time; thus, in the *Asylum* case the International Court of Justice suggested that a customary rule must be based on 'a constant and uniform usage' (*ICJ Reports*, 1950, pp. 266, 276-7). However, this statement must be seen in the light of the facts of the *Asylum* case, where the Court said: 'The facts . . . disclose so much uncertainty and contradiction, so much fluctuation and discrepancy in the exercise of diplomatic asylum and in the official views expressed on various occasions . . . that it has not been possible to discern . . . any constant and uniform usage, accepted as law' (*ibid.*). In other words, what prevented the formation of a customary rule in the *Asylum* case was not the absence of repetition, but the presence of major inconsistencies in the practice.

Major inconsistencies in the practice (that is, a large amount of practice which goes against the 'rule' in question) prevent the creation of a customary rule. Minor inconsistencies (that is, a small amount of practice which goes against the rule in question) do not prevent the creation of a customary rule (*Fisheries* case, *ICJ Reports*, 1951, pp. 116, 138), although in such cases the rule in question probably needs to be supported by a large amount of practice, in order to outweigh the conflicting practice (Akehurst, 'Custom as a source of international law', *British Year Book of International Law*, vol. 47, 1974-5, pp. 1, 12-21). On the other hand, where there is no practice which goes against an alleged rule of customary law, it seems that a small amount of practice is sufficient to create a customary rule, even though the practice involves only a small number of states and has lasted for only a short time (Akehurst, *loc. cit.*).

What States Say and What States Do

It is sometimes suggested that state practice consists only of what states do, not of what they say. For instance, in his dissenting opinion in the *Fisheries* case, Judge Read argued that claims made to areas of the sea by a state could not create a customary rule unless such claims were enforced against foreign ships.³ But in the later *Fisheries Jurisdiction* case ten of the fourteen judges inferred the existence of customary rules from such claims, without considering whether they had been enforced.⁴ Similarly, the Nuremberg Tribunal cited resolutions passed by the League of

³ *ICJ Reports*, 1951, pp. 116, 191.

⁴ *ICJ Reports*, 1974, pp. 3, 47, 56-8, 81-8, 119-20, 135, 161. The remaining four judges did not deal with this issue.

Nations Assembly and a Pan-American Conference as authority for its finding that aggressive war was criminal according to the 'customs and practices of states'.⁵ The better view therefore appears to be that state practice consists not only of what states do, but also of what they say.

State practice also includes omissions; many rules of international law forbid states to do certain acts, and, when proving such a rule, it is necessary to look not only at what states do, but also at what they do not do.

The Psychological Element in the Formation of Customary Law

When inferring rules of customary law from the conduct of states, it is necessary to examine not only *what* states do, but also *why* they do it. In other words, there is a psychological element in the formation of customary law. For instance, suppose it could be proved that states habitually wrote to one another on white paper. The most that could be inferred from this fact alone would be that international law did not forbid states to write to one another on white paper; one could not infer that writing on white paper was legally obligatory unless there was some evidence that states felt a sense of legal obligation to use white paper.

The technical name given to this psychological element is *opinio iuris sive necessitatis* (*opinio iuris* for short). It is usually defined as a conviction felt by states that a certain form of conduct is required by international law. This definition presupposes that all rules of international law are framed in terms of duties. But that is not so; in addition to rules laying down duties, there are also permissive rules, which permit states to act in a particular way (for example, to prosecute foreigners for crimes committed within the prosecuting state's territory) without making such actions obligatory. In the case of a rule imposing a duty, the traditional definition of *opinio iuris* is correct; in the case of a permissive rule, *opinio iuris* means a conviction felt by states that a certain form of conduct is *permitted* by international law.

There is clearly something artificial about trying to analyse the psychology of collective entities such as states. Indeed, the modern tendency is not to look for direct evidence of a state's psychological convictions, but to infer *opinio iuris* indirectly from the actual behaviour of states. For these purposes, it must be remembered that rules of international law govern the behaviour of states in their relations with other states; it is therefore necessary to examine not only what one state does or refrains from doing,

⁵ *American Journal of International Law*, vol. 41, 1947, pp. 172, 219-20. See also *Nicaragua v. USA*, *ICJ Reports*, 1986, pp. 14, 99-104, 106-8.

but also how other states react. If conduct by some states provokes *protests* from other states that such conduct is *illegal*, the protests can deprive such conduct of any value as evidence of customary law.

Permissive rules can be proved by showing that some states have acted in a particular way (or have claimed that they are entitled to act in that way) and that other states, whose interests were affected by such acts (or claims), have not protested that such acts (or claims) are illegal.

In the case of rules imposing duties, it is not enough to show that states have acted in the manner required by the alleged rule, and that other states have not protested that such acts are illegal. It also needs to be proved that states regard the action as *obligatory*. Recognition of the obligatory character of particular conduct can be proved by pointing to an express acknowledgment of the obligation by the states concerned, or by showing that failure to act in the manner required by the alleged rule has been condemned as illegal by other states whose interests were affected.

The difference between permissive rules and rules imposing duties can be clearly seen in the *Lotus* case. The facts of the case were as follows: a French merchant ship collided with a Turkish merchant ship on the high seas, as a result (allegedly) of negligence on the part of Lieutenant Demons, an officer on the French ship, and several people on the Turkish ship were drowned. France had jurisdiction to try Lieutenant Demons for manslaughter, but the question was whether Turkey also had jurisdiction to try him. Turkey argued that there was a permissive rule empowering it to try him; France argued the exact opposite, namely, that there was a rule imposing a duty on Turkey not to try him. The Permanent Court of International Justice accepted the Turkish argument and rejected the French argument because (1) although there were only a few cases in which states in Turkey's position had instituted prosecutions, the other states concerned in those cases had not protested against the prosecutions; and (2) although most states in Turkey's position had refrained from instituting prosecutions, there was no evidence that they had done so out of a sense of legal obligation (1927, PCIJ, series A, no. 10, pp. 28 ff.).

Opinio iuris is sometimes interpreted to mean that states must believe that something is already law before it can become law. However, that is probably not true; what matters is not what states believe, but what they say. If some states claim that something is law and other states do not challenge that claim, a new rule will come into being, even though all the states concerned may realize that it is a departure from pre-existing rules (for an example, see below, pp. 188-9).

Customary law has a built-in mechanism of change. If states are agreed that a rule should be changed, a new rule of customary international law based on the new practice of states can emerge very quickly; thus the law on outer space developed very quickly after the first artificial satellite was sent up (see below, pp. 199-200, and cf. *ICJ Reports*, 1969, pp. 3, 42-3, 230). If the number of states supporting a change, or the number of states resisting a change, is small, they will probably soon fall into line with the practice of the majority. The real difficulty comes when the states supporting the change and the states resisting the change are fairly evenly balanced. In this case change is hard and slow, and disagreement and uncertainty about the law may persist for a long time until a new consensus emerges (the controversy about the width of the territorial sea is a good example; see below, pp. 173-6).

Universality and the Consensual Theory of International Law

It has already been suggested that the practice followed by a small number of states is sufficient to create a customary rule if there is no practice which conflicts with that rule (see above, p. 28). But what if some states oppose the alleged rule? Can the opposition of a single state prevent the creation of a customary rule? If so, there would be very few rules, because state practice differs from state to state on many topics. On the other hand, to allow the majority to create a rule against the wishes of the minority would lead to insuperable difficulties. How large must the majority be? In counting the majority, must equal weight be given to the practice of Guatemala and the practice of the USA? If, on the other hand, some states are to be regarded as more important than others, on what criteria is importance to be based? Population? Area? Wealth? Military power?

In the *Lotus* case, the Permanent Court of International Justice said: 'The rules of law binding upon states . . . emanate from their own free will as expressed in conventions or by usages generally accepted as expressing principles of law' (1927, PCIJ, series A, no. 10, p. 18). This consensual theory, as it is called, has been criticized in the West, but it has been accepted with enthusiasm by Soviet lawyers. Soviet doctrine teaches that international law is the result of an agreement between states, and that the only difference between treaties and custom is one of form, treaties representing an express agreement and custom representing an implied agreement. The merit of this approach is that it explains divergences in state practice; just as different treaties can be in force between different groups of states, so different rules of customary law can apply between different groups of states. The

International Court of Justice came some way towards the Soviet approach in the *Asylum* case, where it recognized the existence of regional customs applying among groups of states in Latin America (*ICJ Reports*, 1950, pp. 266, 277, 293-4, 316).

The consensual theory explains divergences in state practice, but it is rather unconvincing when it is applied to new states. The orthodox rule is that new states are automatically bound by generally accepted international law. Tunkin, the leading Soviet international lawyer, tried to reconcile this rule with the consensual theory by saying:

As regards new states, they are legally entitled not to recognize particular customary rules of general international law. However, entry into official relations with other countries without reservations means that the new state accepts a certain body of principles and rules of existing international law which form the basis of relations between states.⁶

This analysis reduces the element of consent to a fiction; the new state is bound, not because it has consented, but because it has failed to object to the rules.

The element of consent can also become fictitious when one is dealing with the emergence of new rules of customary law among existing states. The International Court of Justice has emphasized that a claimant state which seeks to rely on a customary rule must prove that the rule has become binding on the defendant state.⁷ The obvious way of doing this is to show that the defendant state has recognized the rule in its own state practice (although recognition for this purpose may amount to no more than failure to protest when other states have applied the rule in cases affecting the defendant's interests). But it may not be possible to find any evidence of the defendant's attitude towards the rule, and so there is a second – and more frequently used – way of proving that the rule is binding on the defendant: by showing that the rule is accepted by other states. (Tunkin himself writes that 'the recognition of a particular rule as a rule of international law by a large number of states raises a presumption that the rule is generally recognized'.)⁸ In these circumstances the rule in question is

⁶ G. I. Tunkin, *Droit international public: problèmes théoriques*, 1965, p. 87 (translation). Tunkin does not follow his theory to its logical conclusion. If relations between a new state and old states are wholly consensual, and if the new state can withhold consent from certain rules in its relations with the old states, surely the old states must have an equal right to withhold consent from other rules in their relations with the new state.

⁷ *Asylum* case, *ICJ Reports*, 1950, pp. 266, 276-7; *Rights of Nationals of the USA in Morocco*, *ICJ Reports*, 1952, pp. 176, 200.

⁸ *Op. cit.*, p. 87 (translation). See also the *North Sea Continental Shelf* cases, *ICJ Reports*, 1969, pp. 3, 28, 130. Maybe Tunkin is too severe in requiring that the rule be recognized by a large number of states; cf. above, p. 28.

binding on the defendant state unless the defendant state can show that it has expressly and consistently rejected the rule since the earliest days of the rule's existence; dissent expressed after the rule has become well established is too late to prevent the rule binding the dissenting state. Thus, in the *Fisheries* case, the International Court of Justice held that a particular rule was not generally recognized, but added: 'In any event, the . . . rule would appear to be inapplicable as against Norway, in as much as she has *always* opposed any attempt to apply it to the Norwegian coast' (*ICJ Reports*, 1951, pp. 116, 131, italics added).

Codification of Customary Law

In recent years there has been a tendency to codify customary law. Four conventions on the law of the sea were signed at Geneva in 1958; a convention on diplomatic relations and immunities was signed at Vienna in 1961; a convention on consular relations and immunities was signed at Vienna in 1963; conventions on the law of treaties were signed at Vienna in 1969 and 1986; and conventions on state succession were signed at Vienna in 1978 and 1983.

There are obvious advantages to be gained from codifying customary law in a treaty. The rules become more precise and more accessible; and new states are more willing to accept rules which they themselves have helped to draft. But, in view of the divergences between the practice of different states, codification often means that a compromise is necessary, and there is a limit to the number of compromises that states are willing to accept at any one time. Consequently, codification will succeed only if it proceeds slowly; acceleration produces the risk of failure, as happened at the codification conference organized by the League of Nations in 1930, and the failure of a codification scheme may cast doubt on customary rules which were previously well established. (This is what happened to the three-mile rule concerning the width of the territorial sea after the failure of the 1930 conference.)

The preparatory work for the Geneva and Vienna conventions was carried out by the International Law Commission, a body of thirty-four (originally fifteen) international lawyers elected by the United Nations General Assembly. It is entrusted not only with the codification of international law, but also with its progressive development (that is, the drafting of rules on topics where customary law is non-existent or insufficiently developed); in practice the distinction between codification and progressive development is often blurred. Sometimes the Commission seeks to codify the law, not by preparing a draft convention, but simply by

summarizing the law in a report to the General Assembly. Such reports are not binding in the same way as treaties, but they do constitute valuable evidence of customary law; the Commission's members are distinguished scholars, and they base their work on extensive research and on an attempt to ascertain and reconcile the views of the member-states of the United Nations (for example, by circulating questionnaires and by inviting states to comment on their draft reports – the same procedure is followed during the preliminary work on draft conventions).

Unofficial bodies have also tried their hand at codification. For instance, the Harvard Law School has produced a number of draft conventions; these are not intended to be ratified by states, but are simply used as a convenient means of restating the law. They derive their value from the eminence of the professors who have helped to draw them up.

General Principles of Law

The third source of international law listed in the Statute of the International Court of Justice is 'the general principles of law recognized by civilized nations'. This phrase was inserted in the Statute of the Permanent Court of International Justice, the forerunner of the International Court of Justice, in order to provide a solution in cases where treaties and custom provided no guidance; otherwise, it was feared, the Court might be unable to decide some cases because of gaps in treaty law and customary law. However, there is little agreement about the meaning of the phrase. Some say it means general principles of international law; others say it means general principles of national law. Actually, there is no reason why it should not mean both; the greater the number of meanings which the phrase possesses, the greater the chance of finding something to fill gaps in treaty law and customary law – which was the reason for listing general principles of law in the Statute of the Court. Indeed, international tribunals had applied general principles of law in both these senses for many years before the PCIJ was set up in 1920.

General Principles of International Law

According to this definition, general principles of law are not so much a source of law as a method of using existing sources – extending existing rules by analogy, inferring the existence of broad principles from more specific rules by means of inductive reasoning, and so on. English judges develop English law in this way without needing any statutory authorization, and English

lawyers therefore have difficulty in understanding why an international court should need statutory authorization before it can do the same thing. However, in continental countries with a detailed written code, it is popularly supposed that the function of judges is to apply the law, and not to develop it; consequently, continental statesmen might have accused the PCIJ of exceeding its jurisdiction if it had sought to develop the law without being expressly authorized to do so.

General Principles of National Law

According to this second definition of general principles of law, gaps in international law may be filled by borrowing principles which are common to all or most national systems of law; specific rules of law usually vary from country to country, but the basic principles are often similar.

The difficulty of proving that a principle is common to most or all legal systems is not as great as might be imagined. Legal systems are grouped in families; the law in most English-speaking countries is very similar, just as the law in most Latin American countries is very similar. Once one has proved that a principle exists in English law, one is fairly safe in assuming that it also exists in New Zealand and Australia. In fact, what sometimes happens in practice is that an international judge or arbitrator makes use of principles drawn from the legal system in his own country, without examining whether they are also accepted by other countries. The practice is obviously undesirable, but it is too common to be regarded as illegal.

General principles of law have proved most useful in 'new' areas of international law. When the modern system of international law was beginning to develop in the sixteenth and seventeenth centuries, writers like Grotius drew heavily on Roman law, and a Roman ancestry can still be detected in many of the rules which have now been transformed into customary law (for example, concerning the acquisition of title to territory). In the nineteenth century international arbitration, which had previously been rare, became common, and the need for rules of judicial procedure was met by borrowing principles from national law (for example, the principle that a tribunal is competent to decide whether or not it has jurisdiction in cases of doubt, and the principle that claims brought before a tribunal after an unreasonable delay must be dismissed as inadmissible). In the present century international law, or something closely resembling international law (see below, pp. 74–5), has come to regulate certain contracts made by individuals or companies with states or international organizations – for example, contracts of

employment in international organizations, and oil concessions. Treaties and customary law contain few rules applicable to such topics, and the gap has been filled by recourse to general principles of commercial and administrative law, borrowed from national legal systems. For instance, international administrative tribunals, which try disputes between international organizations and their staff, have consistently applied the principle, borrowed from national law, that an official must be informed of criticisms made against him and must be given an opportunity to reply to those criticisms before the international organization employing him takes a decision to his detriment on the basis of those criticisms.

However, it must be remembered that the environment in which international law operates is very different from the environment in which national law operates, and principles of national law can be used to fill gaps in international law only if they are suited to the international environment (cf. the unhappy attempts to equate law-making treaties with Acts of Parliament, above, p. 24).

Judicial Decisions

Article 38(1)(d) of the Statute of the International Court of Justice directs the Court to apply 'judicial decisions . . . as subsidiary means for the determination of rules of law'. This direction is made 'subject to the provisions of Article 59', which state that 'the decision of the Court has no binding force except between the parties and in respect of that particular case'. In other words, international courts are not obliged to follow previous decisions, although they almost always take previous decisions into account.

We have already seen that judicial and arbitral decisions can be evidence of customary law.⁹ But it is probably true to say that judges can also create new law. The International Court of Justice is particularly important in this respect. Many of its decisions introduced innovations into international law which have subsequently won general acceptance – for instance, the *Reparation for Injuries* case, the *Genocide* case and the *Fisheries* case.¹⁰ There is a very strong probability that the International Court

⁹ See above, p. 26. Judicial and arbitral decisions may conveniently be considered together, because there is little difference between judicial settlement and arbitration in international law (see below, pp. 244–5).

¹⁰ See below, pp. 71–2, 130 and 177. The necessity for subsequent acceptance by states is stressed by Soviet lawyers, who regard treaties and custom as the only true sources of international law. According to them, other so-called sources represent only a halfway stage in the development of rules of international law; the development is not complete until the 'rules' suggested by judges, writers, and so on, have been adopted in treaties or in state practice.

(and other tribunals) will follow such decisions in later cases, since judicial consistency is the most obvious means of avoiding accusations of bias.

Judgments of national courts are also covered by Article 38(1)(d); many of the rules of international law on topics such as diplomatic immunity have been developed by judgments of national courts. But judgments of national courts need to be used with caution; the judges may look as if they are applying international law (and may actually believe that they are doing so), when in fact all that they are applying is some peculiar rule of their own national law (for examples, see below, pp. 48–52 and 67–9).

Learned Writers

Article 38(1)(d) also directs the Court to apply 'the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law'. The word 'publicists' means 'learned writers'. Like judicial decisions, learned writings can be evidence of customary law, but they can also play a subsidiary role in developing new rules of law.

In the past, writers like Grotius exercised influence of a sort which no writer could hope to exercise nowadays. But writers have not entirely lost their influence. They still continue to provide the sort of conceptual framework which is necessary for any legal discussion; for instance, states had been claiming limited rights in areas adjacent to their territorial sea long before Gidel started writing about such claims, but it was Gidel who produced the concept of the contiguous zone as a framework for discussing the validity of these claims (see below, p. 179). Moreover, one finds that states in diplomatic controversies still quote profusely from writers (although the quotations are not always acknowledged), because writers provide a comprehensive, succinct and (with luck) impartial summary of state practice. (A summary which is deliberately made as brief as possible, like the Harvard draft conventions, is particularly useful for purposes of quotation.) In a nutshell, writers quote states and states quote writers.

Other Possible Sources of International Law

Having completed our examination of the list of sources in the Statute of the International Court of Justice, we must now examine whether there are any other sources which are omitted from that list.

Acts of International Organizations

The growth of international organizations since the First World War has been accompanied by suggestions that the acts of international organizations should be recognized as a source of international law. But most of the organs of international organizations are composed of representatives of member-states, and very often the acts of such organs are merely the acts of the states represented in those organs. For instance, a resolution of the United Nations General Assembly can be evidence of customary law because it reflects the views of the states voting for it; it would probably have exactly the same value if it had been passed at a conference outside the framework of the United Nations, and, if many states vote against it, its value as evidence of customary law is correspondingly reduced.

However, international organizations usually have at least one organ which is not composed of representatives of member-states, and the practice of such organs is capable of constituting a source of law. For instance, the United Nations Secretariat often acts as a depositary of treaties (see below, p. 125, n. 3) and its practice as depositary has already affected the law of treaties on such topics as reservations (see below, p. 129–30). Similarly, it is possible that in the future the practice of United Nations forces will influence the evolution of the laws of war. But, in both the examples cited, the United Nations is performing functions which are normally performed by states – acting as a depositary and waging war – so it is only natural that the practice of the United Nations should play the same part as the practice of states in creating customary law.

Sometimes an international organization is authorized to take decisions (often by majority vote) which are binding on member-states. Apart from 'internal' questions relating to the budget, the admission and expulsion of members, and so on, the only clear example in the United Nations Charter is in Chapter VII, which empowers the Security Council to give orders to states as part of its action to deal with threats to the peace, breaches of the peace and acts of aggression. In some other organizations powers to take binding decisions can be exercised more frequently; this is particularly true of the European Economic Community. But it is questionable whether such decisions should be treated as a separate source of law, because the power to take such decisions is conferred by the constituent *treaty* of the organization concerned.

Equity and Natural Law

'Equity', in the present context, is used not in the technical sense which the word possesses in English law, but as a synonym for

'justice'. Moreover, those who look to equity as a source of international law often appeal to natural law (see above, p. 13) in order to strengthen their arguments and to escape accusations of subjectivism. Thus the three terms – 'equity', 'justice' and 'natural law' – tend to merge into one another.

During the sixteenth and seventeenth centuries natural law was a major source of international law. In the nineteenth and twentieth centuries arbitrators have often been authorized to apply justice and equity as well as international law (such authorizations were commoner before 1920 than they are today); even in the absence of such authorization, judges and arbitrators sometimes invoke equitable considerations.¹¹

Whatever the position may have been in the past, it is doubtful whether equity forms a source of international law today. It cannot be assumed that a judge is using equity as a source of law every time he describes a rule as equitable or just. Counsel and judges in national courts frequently appeal to considerations of equity and justice when the authorities are divided on a point of law, but that does not lead to equity being regarded as a source of national law; nor should appeals by international lawyers to considerations of equity be interpreted to mean that equity is a source of international law.

One of the problems about equity is that it can often be defined only by reference to a particular ethical system. Consequently, although references to equity are meaningful in a national society which can be presumed to hold common ethical values, the position is entirely different in the international arena, where the most mutually antagonistic philosophies meet in head-on conflict.

See Akehurst, 'Equity and general principles of law', *International and Comparative Law Quarterly*, vol. 25, 1976, p. 801.

The Hierarchy of the Sources

What happens if a rule derived from one source of international law conflicts with a rule derived from another source? Which prevails over the other?

¹¹ A judge or arbitrator can always use equity to *interpret* or *fill gaps* in the law, even when he has not been expressly authorized to do so. But he may not give a decision *ex aequo et bono* (a decision in which equity *overrides* all other rules) unless he has been expressly authorized to do so. Article 38(2) of the Statute of the International Court of Justice provides that the list of sources in Article 38(1) 'shall not prejudice the power of the Court to decide a case *ex aequo et bono*, if the parties agree thereto'. Article 38(2) has never been applied, but other tribunals have occasionally been authorized to decide *ex aequo et bono*; for instance, two Latin American boundary disputes were decided in this way by arbitrators in the 1930s (*UN Reports of International Arbitral Awards* II 1307 and III 1817).

The relationship between treaties and custom is particularly difficult. Clearly a treaty, when it first comes into force, overrides customary law as between the parties to the treaty; one of the main reasons why states make treaties is because they regard the relevant rules of customary law as inadequate. But treaties can come to an end through desuetude – a term used to describe the situation in which the treaty is consistently ignored by one or more parties, with the acquiescence of the other party or parties. Desuetude often takes the form of the emergence of a new rule of customary law, conflicting with the treaty. Thus treaties and custom are of equal authority; the later in time prevails.

Since the main function of general principles of law is to fill gaps in treaty law and customary law, it would appear that general principles of law are subordinate to treaties and custom (that is, treaties and custom prevail over general principles of law in the event of conflict).

Judicial decisions and learned writings are described in Article 38(1)(d) as 'subsidiary means for the determination of rules of law', which suggests that they are subordinate to the other three sources listed: treaties, custom and general principles of law. Judicial decisions usually carry more weight than learned writings, but there is no hard-and-fast rule; much depends on the quality of the reasoning which the judge or writer employs.

It is doubtful whether equity is a source of international law at all; even if it is, the existence of such doubts would appear to indicate that it is, at most, a very low-ranking source. (However, when a tribunal is authorized to decide *ex aequo et bono*, the tribunal is allowed to substitute its own ideas of equity for any and every rule of international law.)

As for the acts of international organizations, a distinction must be made between the practice of international organizations (which has the same force as state practice, and is therefore evidence of customary law) and binding decisions of international organizations (which are taken under powers conferred by treaty and which therefore have almost the same authority as a treaty).

Ius Cogens

Some of the early writers on international law said that a treaty would be void if it was contrary to morality or to certain (unspecified) basic principles of international law. The logical basis for this rule was that a treaty could not override natural law. With the decline of the theory of natural law, the rule was largely forgotten, although some writers continued to pay lip-service to it.

Recently there has been a tendency to revive the rule, although it is no longer based on natural law; the state most in favour of the rule is the Soviet Union, which would never support the semi-religious theory of natural law! Moreover, the rule is now said to limit the liberty of states to create local custom, as well as their liberty to make treaties; the rule thus acts as a check on the tendency of international law to disintegrate into different regional systems – a tendency which would otherwise be the inevitable consequence of the Soviet definition of custom as an implied agreement.

The technical name now given to the basic principles of international law, which states are not allowed to contract out of, is 'peremptory norms of general international law', otherwise known as *ius cogens*.

Article 53 of the Convention on the Law of Treaties, signed at Vienna in 1969, provides as follows:

A treaty is void if, at the time of its conclusion, it conflicts with a peremptory norm of general international law. For the purposes of the present Convention, a peremptory norm of general international law is a norm accepted and recognized by the international community of states as a whole as a norm from which no derogation is permitted and which can be modified only by a subsequent norm of general international law having the same character.

(What is said about treaties being void would also probably apply equally to local custom. The reason why local custom is not mentioned is because the purpose of the Convention was to codify the law of *treaties* only.)

Although cautiously expressed to apply only 'for the purposes of the present Convention', the definition of a 'peremptory norm' is probably valid for all purposes. Moreover, the definition is more skilful than appears at first sight. A rule cannot become a peremptory norm unless it is 'accepted and recognized [as such] by the international community of states *as a whole*' – a requirement which is too logical and reasonable to be challenged, but which is well worth stating expressly, because there have already been cases of states trying to evade rules of international law which they found inconvenient by arguing that those rules were contrary to some exotic examples of *ius cogens*; this danger should, with luck, be averted by requiring such states to prove that the alleged rule of *ius cogens* has been 'accepted and recognized [as such] by the international community of states *as a whole*'.

At present very few rules pass this test. Many rules have been suggested as candidates, but the only one which at present receives anything approaching general acceptance is the rule against aggression.

Although the question is controversial, the better view appears to be that a rule of *ius cogens* can be derived from custom and possibly from treaties, but probably not from other sources (Akehurst, 'The hierarchy of the sources of international law', *British Year Book of International Law*, vol. 47, 1974-5, pp. 273, 281-5).

Further Reading

- Clive Parry, *The Sources and Evidences of International Law*, 1965.
 Michael Akehurst, 'Custom as a source of international law', *British Year Book of International Law*, vol. 47, 1974-5, p. 1.
 Gutteridge, Cheng and Adamkiewicz, 'The meaning and scope of Article 38(1) (c) of the Statute of the International Court of Justice', *Transactions of the Grotius Society*, vol. 38, 1952, p. 125.
 Michael Akehurst, 'Equity and general principles of law', *International and Comparative Law Quarterly*, vol. 25, 1976, p. 801.
 Jorge Castañeda, *Legal Effects of United Nations Resolutions*, 1969.
 Michael Akehurst, 'The hierarchy of the sources of international law', *British Year Book of International Law*, vol. 47, 1974-5, p. 273.

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Internat Municip

'Municipal law' lawyers to the nat the relationship b give rise to man conflict between :

The Attitude of I

International law instance, as we ha of international c both sources of i Moreover, interna by municipal la individual is a n looks at the law o wholly unreasona

However, the g cannot plead a ru to a claim based case, the Perman certain that Franc scope of her inter case no. 46, p. happens, a treaty obligation on stat municipal law.

The Attitude of I

The attitude of n easy to summari